

Voluntary Report – Voluntary - Public Distribution

Date: May 20,2020

Report Number: TH2020-0067

Report Name: A Draft Notification of a Zero MRL for Residues of Paraquat and Chlorpyrifos

Country: Thailand

Post: Bangkok

Report Category: Sanitary/Phytosanitary/Food Safety, Oilseeds and Products, Grain and Feed, FAIRS Export Certificate Report, FAIRS Annual Country Report, FAIRS Subject Report, Food and Agricultural Import Regulations and Standards - Certification, Food and Agricultural Import Regulations and Standards - Narrative

Prepared By: Maysa Chanikornpradit, Agricultural Specialist

Approved By: Russell Nicely

Report Highlights:

The Thai Food and Drug Administration (TFDA) opened a public comment period on the Ministry of Public Health (MOPH)'s draft Notification Re: Food Containing Pesticide Residues (Pesticide Residues in Food) (No. 3) until June 15, 2020. According to sources, TFDA will notify the WTO of this regulation change by the end of this week.

On May 19, 2020, TFDA posted its draft notification Re: Food Containing Pesticide Residues (Pesticide Residues in Food) (No. 3) on its website (<http://www.fda.moph.go.th/sites/food/SitePages/View.aspx?T=FoodNews&TF=1&IDdata=142>, available only a Thai version).

TFDA is accepting comments on the draft notification until June 15, 2020. According to a TFDA official, only Thai residents or Thai companies are allowed to submit comments. WTO country/economy members and international communities/entities will be able to provide comments through the WTO channel shortly as TFDA already forwarded the draft notification to the National Bureau of Agricultural Commodity and Food Standards (ACFS)), a national SPS focal point and anticipated to reach WTO by the end of this week. Under the notification draft, TFDA will apply a zero tolerance Maximum Residue Limit (MRL) for residues of Chlorpyrifos and Paraquat substances in food and food products, following the ban of these two substance as determined by the National Hazardous Substance Committee (NHSC) on April 30, 2020. More details about the NHSC's decision and Post's insights can be seen in GAIN report [TH2020-0057](https://www.fas.usda.gov/data/thailand-fairs-country-report-4) (<https://www.fas.usda.gov/data/thailand-fairs-country-report-4>)

A copy of the draft notification and public comment form are attached.

(Unofficial Translation)

Ministry of Public Health Notification

No. _____ B.E. _____

By virtue of the Food Act B.E. 2522 (1979)

Re: Food Containing Pesticide Residues (No. 7)

It is deemed appropriate to revise the Ministry of Public Health notification entitled “Food Containing Pesticide Residues”.

By virtue of the provision of Section 5 in the first phase, and Section 6 (2) (3) and (9) of the Food Act B.E. 2522 (1979), the Minister of Public Health issues the notification as follows:

Clause 1 Add items number 83 to 87 into a list in Annex 1: Hazardous S Substance Type 4 under the Hazardous Act B.E. 2535 (1992) and the Hazardous Act (Amended), B.E. 2551 (2008) in Attachment of Notification of the Ministry of Public Health No. 387, B.E. 2560 (2017) Re: Food Containing Pesticide Residues, as follows:

83	chlorpyrifos
84	chlorpyrifos-methyl
85	paraquat
86	paraquat dicloride
87	Paraquat methosulfate

Clause 2 Abolish item number 1 chlorpyrifos and item number 23 in Annex 2: Maximum Residue Limit is Attachment of Notification of the Ministry of Public Health No. 387, B.E. 2560 (2017) Re: Food Containing Pesticide Residues, dated August 18, B.E. 2560 (2017);

Clause 3 All manufacturers and importers of food products for commercial purpose must comply the following requirements:

- (1) Any food products manufactured prior to June 1, 2020 must meet the requirement as described in Notification of the Ministry of Public Health No. 387, B.E. 2560 (2017) Re: Food Containing Pesticide Residues dated August 18, 2017; and comply to this notification within 30 days after the notification is effective.
- (2) Any food products being exported from country of origin prior to June 1, 2020 must meet the requirement as described in Notification of the Ministry of Public Health No. 387, B.E. 2560 (2017) Re: Food Containing Pesticide Residues dated August 18, 2017; and comply to this notification within 30 days after the notification is effective.

Clause 4 This notification is effective on a day after the date of publishing in the Royal Gazette.

Notified on _____

Attachment

Comment Submission Form

(Draft) Ministry of Public Health (MOPH) Notification (no.) B.E.
By virtue of the Food Act B.E. 2522 (1979) Re: Food Containing
Pesticide Residues (No. 3)

Personal Details:

Name and Last name

..... Title.....

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Organization/Address.....

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Tel. Fax

E-mail

Additional info

☐ Public Sector

☐ Producer/ Instant Food Importer

☐ Agricultural Commodity Importer (food-grade)

☐ Other.....

Please answer the question by marking in ☐ and fill in opinion in blank space.

1. Add two chemical substances; chlorpyrifos and paraquat in total of 5 items from no. 83 to 87 into Annex 1 of MOPH Notification no. 387 B.E. 2566 Re: Food Containing Pesticide Residues

☐ Agree

☐ Partially disagree

because.....

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☐ Disagree because

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2. Revoke Maximum Residue Limit, MRL of agricultural chemical which are
1) chlorpyrifos and 23) paraquat listed in annex 2 of MOPH Ministerial
Notification no. 387 B.E. 2560 Re: Food Containing Pesticide
Residues

(Due to recategorization from agricultural chemical no. 3 to no.4 according
to Annex 1 of MOPH Notification, by which zero tolerance of MRL in food
will be applied)

☐ Agree

☐ Partially disagree

because.....
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☐ Disagree

because.....
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3. Grace Period as specified in the Draft

☐ Agree

☐ Partially disagree because

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☐ Disagree
because.....

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4. Effective Date (1 day after published date in Royal Gazette)

☐ Agree

☐ Partially disagree
because.....

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☐ Disagree
because.....

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5. Comment/other recommendation

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Attachments:

No Attachments.